

Part 1 : Drugs and Cosmetics Rules , 1945

Rule 3

Title: Functions of the Central Drugs Laboratory

Jurisdiction: India

Category: Standards

Source Citation: Drugs Rules, 1945, Rule 3

Plain English Summary:

This rule explains the testing and analysis functions of the Central Drugs Laboratory. The laboratory examines drug samples sent to it under the Drugs and Cosmetics Act, 1940, and performs other duties assigned by the Central Government. For an Ayurvedic researcher or manufacturer, this shows the importance of official laboratory testing and scientific verification of drug quality.

The Exact Legal Text:

It shall be the function of the Laboratory—

(i) to analyse or test such samples of drugs as may be sent to it under sub-section (2) of section 11, or under sub-section (4) of section 25 of the Act;

(iii) to carry out such other duties as may be entrusted to it by the Central Government or, with the permission of the Central Government, by a State Government after consultation with the Drugs Technical Advisory Board.

Keywords/Triggers:

Central Drugs Laboratory, drug sample testing, official drug analysis, laboratory quality testing, Ayurvedic drug testing, scientific verification, drug standards, government laboratory.

Rule 4

Title: Despatch of Samples for Test or Analysis

Jurisdiction: India

Category: Standards

Source Citation: Drugs Rules, 1945, Rule 4

Plain English Summary:

This rule explains how drug samples must be sent to the laboratory for testing or analysis. The sample must be placed in a sealed packet, marked with a distinguishing number, and accompanied by the required memorandum and seal impression. For an Ayurvedic manufacturer or researcher, proper sample handling is important because incorrect packaging or identification may affect the reliability of laboratory testing.

The Exact Legal Text:

Samples for test or analysis under sub-section (4) of section 25 of the Act shall be sent by registered post in a sealed packet, enclosed, together with a memorandum in Form 1, in an outer cover addressed to the Director.

The packet as well as the outer cover, shall be marked with a distinguishing number.

A copy of the memorandum in Form 1 and a specimen impression of the seal used to seal the packet shall be sent separately by registered post to the Director.

Keywords/Triggers:

Drug sample submission, Form 1, sealed drug sample, laboratory analysis procedure, sample identification, Ayurvedic sample testing, official drug testing, sample handling.

Rule 5

Title: Recording of Condition of Seals

Jurisdiction: India

Category: Standards

Source Citation: Drugs Rules, 1945, Rule 5

Plain English Summary:

This rule requires the condition of the seal on a drug sample to be recorded when the sample is received by the laboratory. The packet must be opened by an authorised officer appointed by the Director. For an Ayurvedic researcher or manufacturer, this helps maintain the authenticity and integrity of the sample during the testing process.

The Exact Legal Text:

On receipt of the packet, it shall be opened by an officer authorised in writing in that behalf by the Director, who shall record the condition of the seal on the packet.

Keywords/Triggers:

Drug sample seal, seal verification, laboratory sample integrity, authorised laboratory officer, sample authenticity, Ayurvedic drug testing, sealed sample record, quality testing procedure.

Rule 6

Title: Report of Result of Test or Analysis

Jurisdiction: India

Category: Standards

Source Citation: Drugs Rules, 1945, Rule 6

Plain English Summary:

This rule requires the laboratory to provide the result of a drug test or analysis along with the complete testing protocols. The report must be supplied to the person who sent the sample in the prescribed Form 2. For an Ayurvedic startup or researcher, this supports proper documentation of testing results and helps establish the quality and authenticity of a drug.

The Exact Legal Text:

After test or analysis the result of the test or analysis, together with full protocols of the tests applied, shall be supplied forthwith to the sender in Form 2.

Keywords/Triggers:

Drug test report, Form 2, laboratory analysis result, testing protocol, Ayurvedic drug quality report, official test certificate, drug analysis documentation, laboratory verification.

Rule 157

Title: Conditions for Grant or Renewal of Licence for Ayurvedic Drugs

Jurisdiction: India

Category: Standards

Source Citation: Drugs Rules, 1945, Rule 157

Plain English Summary:

This rule specifies the conditions that must be fulfilled before a licence to manufacture Ayurvedic, Siddha or Unani drugs is granted or renewed. The manufacturing premises must follow the hygienic requirements given in Schedule T, and the manufacturer must comply with Good Manufacturing Practices. The rule also controls the naming of classical Ayurvedic medicines and prevents manufacturers from using misleading prefixes or suffixes or using the name of a classical medicine for a patent or proprietary medicine.

The Exact Legal Text:

157. Conditions for the grant or renewal of a licence in Form 25-D.—Before a licence in Form 25-D is granted or renewed in Form 26-D the following conditions shall be complied with by the applicant, namely:—

(1) The manufacture of Ayurvedic (including Siddha) or Unani drugs shall be carried out in such premises and under such hygienic conditions as are specified in Schedule T.

(IA) For issuing of the certificate of Good Manufacturing Practices, the Licensing Authority shall verify the requirements as per schedule T and issue the Good Manufacturing Practices certificate in form 26 E-I, simultaneously along with grant or renewal of licence in form 25D.

(IB) No manufacturer shall use any prefix or suffix with the name of any Ayurvedic, Siddha or Unani Tibb drug falling under clause (a) of section 3 of the Act, except as described in the authoritative books specified in the First Schedule to the Act:

Provided that a formulation without any specific name, described in the authoritative books may be named on the basis of the ingredients of the formulation.

(IC) The name of any Ayurvedic, Siddha or Unani Tibb drug falling under clause (a) of section 3 of the Act shall not be used for naming any patent or proprietary medicine relating to Ayurvedic, Siddha or Unani Tibb systems of medicine referred to in sub-clause (i) of clause (h) of the said section:

Provided that this rule shall not be applicable for single plant-ingredient based Ayurvedic, Siddha or Unani Tibb formulation licensed or to be licensed as patent or proprietary medicine under sub-clause (i) of clause (h) of section 3 of the Act.

Keywords/Triggers:

Ayurvedic manufacturing licence, Form 25-D, Form 26-D, Schedule T, Good Manufacturing Practices, GMP certificate, classical Ayurvedic medicine name, patent or proprietary medicine naming.